

SPECIFIC TERMS AND CONDITIONS OF THE FLEEQUID CARE® SERVICE

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1. DEFINITIONS.

In addition to the other definitions set forth in the 'General Terms and Conditions of the Fleequid Marketplace' ('General Terms and Conditions'), which can be found in the relevant section (<https://fleequid.com/en/terms-and-conditions>), which govern the Fleequid Marketplace and are herein fully referenced and transcribed, the following additional or special definitions apply for

the purposes of these *Specific Terms and Conditions of the Fleequid Care® Service* ('STCFCs' or 'Specific Terms and Conditions'):

- a) **Buyer:** the person who, purchasing a Vehicle on the Fleequid® Marketplace, in the exercise of their business or professional activity, requests and obtains the activation of the Fleequid Care® Service. The Service is not intended for consumers pursuant to Leg. Decree 206/2005 (Consumer Code).
- b) **Authorised Centre:** the workshop or service centre identified or previously authorised by Fleequid® to carry out checks, repairs or servicing covered by the Fleequid Care® Service.
- c) **General Terms and Conditions** or **GTCs:** the General Terms and Conditions of the Fleequid® Marketplace, which these Specific Terms and Conditions supplement and, for all matters not expressly regulated herein, refer to. In the event of any conflict or difference of interpretation, these Specific Terms and Conditions shall prevail pursuant to Article 3.3 of the GTCs.
- d) **Fleequid Care** or **Fleequid Care Service:** the optional, non-insurance, commercial and conventional warranty whereby Fleequid® (Adorea S.r.l.) directly assumes, for a fee, the obligation to cover — subject to the limits, conditions and exclusions set out in these Specific Terms and Conditions and notwithstanding the current General Terms and Conditions of Fleequid Marketplace — Failures and Malfunctions not declared in the TrustReport relating to the Covered Components set out in clause 3.3 of these Specific Terms and Conditions.
- e) **Failure(s)** or **Malfunction(s):** the sudden, unforeseeable event(s) not declared in the TrustReport that result(s) in the total or partial loss of functionality of the Covered Components pursuant to Article 3.3 of these Specific Terms and Conditions, requiring their repair or replacement. This definition does not include defects or faults already reported or declared in the TrustReport, as well as those resulting from normal wear and tear, insufficient or irregular maintenance, improper use, negligence or non-compliance with the manufacturer's instructions, resulting from tampering, unauthorised work or non-compliant alterations, or resulting from accidental or external events such as accidents, collisions, fire, flooding, natural disasters or other force majeure, which shall therefore be excluded from cover under this article. The qualification of the Failure or Malfunction and its eligibility for cover are left to the technical assessment of Fleequid® or the Authorised Centre, in accordance with the procedure set out in Articles 7 and 8 of these Specific Terms and Conditions.
- f) **Claim:** the written communication sent by the Buyer to Fleequid® via the official channels indicated (claims@fleequid.com or dedicated portal) to report a fault or request work under warranty, as well as any subsequent dispute concerning the handling or outcome of the case. The Claim under these Specific Terms and Conditions is separate from the complaint governed by Article 13 of the General Terms and Conditions, does not replace it and does not interrupt or extend its time limits.
- g) **TrustReport:** the technical document drawn up according to Fleequid® Marketplace procedures, summarising the condition and any criticalities declared or found on the vehicle prior

to sale. The TrustReport constitutes a benchmark for identifying Failures Covered by the Fleequid Care® Service, excluding those already reported or declared in the same report.

h) **Seller:** the party who, via the Fleequid® Marketplace, offered a Vehicle for sale, expressly declaring in the TrustReport the absence of faults or malfunctions relating to the Covered Components pursuant to Article 3.3 of these Specific Terms and Conditions, compliance with which constitutes a condition of eligibility for the Fleequid Care® Service.

i) **Vehicle:** the Vehicle, as defined in the Fleequid® Marketplace General Terms and Conditions, for which the Buyer has requested and obtained activation of the Fleequid Care® Service and the Seller has made the declaration of compliance required in the TrustReport for the purposes of eligibility for the Service.

j) **Fleequid Voucher** or **Voucher:** the electronic credit issued by Fleequid®, not convertible into money, which can be used by the Buyer exclusively to offset the Fees due to Fleequid® on future purchases or sales of Vehicles on the Fleequid® Marketplace, within the limit and under the conditions set out in these Specific Terms and Conditions and, in particular, as set out in Article 5.

2. SUBJECT AND NATURE OF THE SERVICE.

2.1 The present *Specific Terms and Conditions of the Fleequid Care® Service* regulate the Fleequid Care® Service, as defined in Article 1(d), offered by Fleequid® to Buyers who, in the course of their business or professional activity, have purchased a Vehicle on the Fleequid® Marketplace and request activation of said Service subject to payment of the relative fee.

2.2 The Fleequid Care® Service is an optional, non-insurance commercial warranty pursuant to Article 1322 of the Italian Civil Code. It does not constitute an insurance product or contract, nor does it involve the assumption of future or indefinite random risks. The economic risk associated with the provision of guarantee services is assumed directly by Fleequid® (Adorea S.r.l.), which acts in its own right and not as an intermediary or agent of insurance companies.

2.3 The warranty operates exclusively in favour of the Buyer. The Service is autonomous and separate, in terms of legal basis and content, from the contracts of sale of the Vehicle, however concluded and structured pursuant to the General Terms and Conditions, and does not replace or alter the Seller's legal responsibilities arising from applicable law or the General Terms and Conditions. Fleequid® assumes a direct and independent obligation to the Buyer solely for the services set out in these Specific Terms and Conditions; the obligations arising therefrom remain separate from those arising from the aforementioned contracts of sale and do not alter the rules governing them. The transferability of the Service is governed by Article 4.5 below, referred to herein in full.

2.4 Only failures or malfunctions not declared in the TrustReport, as defined in Article 1(g) and in the further provisions of these Special Terms and Conditions, shall fall within the scope of the Service. The cover expressly excludes failures caused by fortuitous event, force majeure, improper use, tampering, negligence, collision, accident, fire, flooding, normal wear and tear or

lack of maintenance of the Vehicle, as well as any event occurring after delivery that is not attributable to a pre-existing defect.

2.5 The relationship between these Specific Terms and Conditions and the General Terms and Conditions of the Fleequid® Marketplace is governed by Article 3.3 of the General Terms and Conditions. The Buyer declares having read in full the General Terms and Conditions of the Fleequid® Marketplace and having agreed to them at the time of registration on and use of the Marketplace. In the event of any conflict or discrepancy between the two, these Specific Terms and Conditions shall prevail, limited to the regulation of the Fleequid Care® Service.

3. COVERED AND EXCLUDED COMPONENTS.

3.1 The Fleequid Care® Service exclusively covers **Failures or Malfunctions not declared in the TrustReport** of the Vehicle purchased on the Fleequid® Marketplace, limited to the main components of the engine and gearbox, under the terms and conditions set out in these Specific Terms and Conditions.

3.2 For the purposes of cover, Failures or Malfunctions shall be deemed to be undeclared in the TrustReport if they are **attributable to defects existing prior to the delivery of the Vehicle to the Buyer** but were not reported, highlighted or noted in the TrustReport drawn up at the time of sale. The cover therefore operates with reference to Faults or Malfunctions **obscured or concealed by the Seller**, attributable to pre-existing defects of the Vehicle, but which were neither evident nor declared at the time of delivery. Deterioration, defects or anomalies resulting from normal wear and tear, post-delivery events or causes not attributable to pre-existing defects of the vehicle are in any case not covered by the Fleequid Care® warranty.

3.3 Covered Components:

Engine and Gearbox - The cover only concerns the main mechanical components of the engine and gearbox, understood to mean:

- A.** for the **engine**: engine block, cylinder head, crankshaft, pistons, connecting rods, valves, camshafts and other parts strictly functional to the operation of the engine;
- B.** for the **gearbox**: gearbox, gears, shafts, bearings, differential and other parts strictly functional to the operation of the manual or automatic transmission.

3.4 Excluded Components - The following are expressly excluded from cover, by way of example but not limited to:

- A.** the entire air-conditioning (A/C) system in all its parts and components, including compressor, condenser, evaporator, expansion valve, internal fan motor, control units, piping, ducts, fittings and any other element of the A/C system;
- B.** all electrical, electronic, hydraulic or mechanical components not listed in the previous paragraphs;

- C.** materials subject to normal wear and tear (for example, clutches, belts, filters, gaskets, sleeves, liquids, lubricants, engine oil, coolant, etc.);
- D.** traction or starter batteries, tyres, wheels, brakes, suspension, steering, bodywork, windows, headlights and lights, interior trim, accessories or equipment not strictly functional to the covered components;
- E.** the elements of the exhaust system, emission treatment system or particle filter devices (EGR, catalytic converters, DPF, AdBlue, lambda probes, etc.);
- F.** any other organ, part or system not expressly included among the Covered Components.

3.5 Principle of Exclusivity - The Buyer acknowledges and accepts that the Fleequid Care® Service cover only operates with reference to the components expressly listed in paragraph 3.3 of this article, within the limits and with the exclusions set out in these Specific Terms and Conditions, and that anything not expressly listed is to be understood as excluded from the conventional warranty provided by Fleequid®.

3.6 Operating terms and conditions of cover - The cover operates within the limit of liability indicated in Article 5 and only for the period of validity of the Service indicated in Article 4. Any work must be authorised in advance by Fleequid® and may only be performed at Authorised Centres identified or approved by Fleequid®. Any work not previously authorised or carried out in workshops not recognised by Fleequid® shall immediately invalidate the warranty for the relative event.

3.7 Causes for further exclusion - Fleequid Care® does not under any circumstances extend to:

- A.** failures or malfunctions resulting from fortuitous events, force majeure or external events occurring after delivery of the vehicle (such as accidents, fire, flooding, frost, electrical surges or vandalism);
- B.** Damage resulting from improper or negligent use, overloading, tampering, technical modifications, improper installation, lack of maintenance or use deviating from normal professional diligence;
- C.** indirect or consequential damages, such as vehicle downtime, loss of revenue, loss of contracts or loss of image, as further specified in Article 11.

3.8 Independence of warranty - It is understood that this warranty does not prejudice, limit or replace the contractual or statutory remedies available to the Buyer against the Seller under the General Terms and Conditions or applicable law regarding defects in the goods sold. The performance of Fleequid®'s obligations to the Buyer shall not prejudice or limit Fleequid®'s rights and remedies against the Seller, including those arising from misrepresentations, omissions or breaches of the General Terms and Conditions. The Fleequid Care® Service is an additional, independent and optional safeguard to ensure the correctness of the statements made by the Seller and the reliability of the sales process on the Fleequid® Marketplace.

4. COMMENCEMENT, DURATION, CONDITIONS OF EFFECTIVENESS AND CONSIDERATION.

4.1 The *Fleequid Care® Service* commences automatically on the **date of delivery of the Vehicle to the Buyer**, as shown on the sales and transport documents issued by Fleequid®. This date marks the start of the period of validity of the warranty. At the time of delivery, the mileage of the Vehicle is recorded and constitutes the initial mileage for the purposes of Article 4.2 below. The initial mileage is noted in the delivery report, where drawn up, which constitutes primary evidence thereof; failing this, the initial mileage is derived from other documentary or photographic evidence contemporaneous with delivery and verifiable by Fleequid®. For these purposes, the mileage indicated in the Auction data sheet or in the Technical Specifications shall not be taken into account.

4.2 The Service is valid until the earlier of the expiry of **three (3) months** from the date of delivery and the Vehicle having travelled **fifteen thousand (15,000) kilometres** from the initial mileage recorded pursuant to Article 4.1 above, **whichever limit is reached first**, without the possibility of tacit renewal or automatic extension. The Service shall terminate automatically upon the first limit being reached, without the need for termination or communication by Fleequid® or the Buyer. A Failure that becomes apparent within both the time limit and the mileage limit shall be covered, provided that it is promptly reported pursuant to Article 7, even if, at the time of the report, the Service has in the meantime terminated owing to one or both limits having been reached.

4.3 Fleequid Care® can only be activated for vehicles that meet the following requirements at the time of delivery:

- A.** the Seller has declared in the TrustReport that there are no known failures or defects in the engine and gearbox;
- B.** the Vehicle has been delivered in a condition conforming to the Seller's declaration and, at the time of delivery, does not present any obvious defects or damage that would render it unfit for circulation or exclude it from cover;
- C.** the Buyer has paid for the Service fee in full through the official channels of the Fleequid® Marketplace prior to delivery of the Vehicle.

4.4 The Seller's declaration contained in the TrustReport constitutes the **essential prerequisite** for the operation of the Service and the direct assumption of the economic risk by Fleequid®. In any event, Fleequid® shall not be liable for failures or malfunctions resulting from incorrect information or statements by the Seller if the Buyer has failed to request activation of the Service or has provided Fleequid® with incomplete or untrue data at the time of activation.

4.5 The Service is strictly personal and non-transferable. In the event of subsequent disposal, sale or transfer of the Vehicle to a third party, cover automatically lapses, with no right to reimbursement or compensation. Any transfer of the Service to the new owner is only permitted with the prior written consent of Fleequid®, and is subject to payment of an administrative fee determined by Fleequid®.

4.6 The fee for activating the Fleequid Care® Service is EUR 495.00 (four hundred and ninety-five/00) plus VAT, to be paid in a single payment prior to delivery of the Vehicle. Payment of the fee is an essential condition for the effectiveness of the Service.

4.7 Under no circumstances shall the non-use, suspension or early termination of the Service give any right to reimbursement, price reduction or extension of the duration, unless Fleequid® decides otherwise in writing for proven technical or operational reasons.

4.8 The duration and remuneration of the Fleequid Care® Service shall not be subject to subsequent modification or adjustment, except to the extent of any revision of these Specific Terms and Conditions effected by Fleequid® pursuant to Article 14.

5. LIMIT OF LIABILITY AND INDEMNITY METHODS.

5.1 The Fleequid Care® Service envisages, for each covered Vehicle, an overall limit of liability of EUR 10,000.00 (ten thousand/00) plus VAT, referring to the entire duration of the Service and which cannot be accumulated with other services or warranties that may be activated for the same Vehicle. The limit of liability represents the maximum financial exposure of Fleequid® for all services, work, repairs and indemnities attributable to the failures covered by these Specific Terms and Conditions.

5.2 Within the above limit of liability, the indemnity payable to the Buyer shall be determined by Fleequid® on the basis of the technical and managerial assessment of the repair costs and the authorised service methods. The relevant settlement may comprise a cash portion, paid directly to the Authorised Centre, and a portion in the form of a Fleequid® Voucher, which can only be used to offset the Fees due to Fleequid® for future purchases or sales of Vehicles on the Marketplace, in accordance with the provisions of paragraph 5.3 below. The division between the two components of the indemnity shall be established at Fleequid®'s discretion, depending on the type of work and the preliminary findings, it being understood that the value of the Voucher cannot in any case be less than thirty per cent (30%) of the indemnity determined by Fleequid®. The Buyer acknowledges, accepts and expressly authorises this method of determining and dividing the indemnity, acknowledging that it constitutes full performance of Fleequid®'s contractual obligations as an expression of Fleequid®'s technical and managerial discretion. By approving these Special Terms and Conditions, the Buyer waives any and all objections, claims for reimbursement or compensation other than as provided for in this article.

5.3 The Fleequid® Voucher is not convertible into cash, is not transferable to third parties, does not bear interest and cannot be used outside the Fleequid® Marketplace platform. It may be used, in one or more transactions, exclusively to offset the Commissions accrued against the Buyer within twenty-four (24) months from the date of issue. After this period has elapsed without use, the Voucher shall automatically expire, without the need for notification or reimbursement by Fleequid®.

5.4 The limit of liability is all-inclusive and relates to all services rendered during the period of validity of the Service, irrespective of the number or type of Failures that occur. In the event

of multiple Failures or repairs, Fleequid® may progressively impute the amounts recognised for cover until the limit of liability is exhausted; once this limit is reached, the Service shall be deemed automatically terminated, with no obligation to provide further services.

5.5 Fleequid® reserves the right to limit the coverage indicated in Article 5.1 to the residual market value of the Vehicle at the time of the Failure, if this value is lower than the limit of liability foreseen. In no event shall the total indemnity exceed the commercial value of the Vehicle at the date of the failure, as derived from market quotations or other reference used by Fleequid®.

5.6 In the event that, for the repair or replacement of a Covered Component, work is also required on Excluded Components or components not covered, the related costs shall be borne in full by the Buyer. In such cases, Fleequid® may pay the amount due directly to the Authorised Centre and the Buyer shall pay the remaining amount to the Centre.

5.7 Payment of the cash portion, net of the portion recognised in the form of a Voucher, shall be made by Fleequid® within thirty (30) working days following the positive outcome of the preliminary investigation and verification of the costs incurred, subject to delivery to Fleequid® of the original documentation requested (invoice from the Authorised Centre, technical report, proof of payment of the portion payable by the Buyer and any other useful document). Payment shall be made by Fleequid® directly to the Authorised Centre by means of a bank transfer to the account indicated by the latter. Only in exceptional cases authorised in advance in writing by Fleequid® shall the cash payment to be made by Fleequid® be paid to the Buyer in the same manner and on the same terms.

5.8 Any difference between the approved estimate and the actual cost of the work may only be reimbursed, within the limit of liability and in the manner set out in Article 5.2, with the prior written approval of Fleequid®. Any sum paid by the Buyer in excess of the amount recognised by Fleequid® shall not be subject to reimbursement or compensation, unless otherwise decided in writing by Fleequid®.

5.9 The Buyer accepts and acknowledges that the division between direct coverage and Fleequid® Voucher is an essential element of the Fleequid Care® Service and that the issue of the Voucher integrates to all intents and purposes the contractual performance of Fleequid®. The issue of the Voucher shall constitute full and final payment of the corresponding portion of the indemnity.

5.10 The Buyer acknowledges and accepts that the Authorised Centre, pursuant to Article 2756 of the Italian Civil Code or any equivalent provisions of the applicable local laws, may exercise its right of retention on the Vehicle until full payment of the sums due to it, whether due by Fleequid® or the Buyer. In such cases, Fleequid® shall not be liable for any delay in the return of the Vehicle arising from the legitimate exercise of this right, except in the case of wilful misconduct or gross negligence. The Buyer shall indemnify and hold Fleequid® harmless against any claim or demand for compensation arising out of or in connection with such delays, without prejudice to Fleequid®'s rights against the Authorised Centre.

6. OBLIGATIONS OF THE BUYER AND CONDITIONS OF EFFECTIVENESS.

6.1 The effectiveness of the *Fleequid Care® Service* is subject to the full and proper fulfilment by the Buyer of their obligations under this article and, in general, compliance with the *General Terms and Conditions* and these *Specific Terms and Conditions*. Failure to comply with even a single one of the obligations provided for herein shall entail the total or partial forfeiture of the right to cover, with the consequent ineffectiveness of the Service for the default event.

6.2 The Buyer is obliged to use the Vehicle with the professional diligence proper to their activity and to maintain it in efficient and safe conditions, carrying out ordinary and extraordinary maintenance according to the manufacturer's requirements, with the use of compliant spare parts and at qualified workshops. Maintenance documentation (invoices, service booklets, receipts, etc.) must be kept for the entire duration of the Service and made available to Fleequid® upon request.

6.3 Upon delivery of the Vehicle, the Buyer shall verify the correspondence between the actual condition of the Vehicle and the *TrustReport*, promptly reporting any discrepancies found. Failure or delay in reporting immediately perceptible discrepancies shall result in the exclusion of cover for the related failures or defects.

6.4 In the event of malfunctions, activation of warning lights, abnormal noises or other signs that may indicate the existence of a failure of the Covered Components as provided for in Article 3.3 above, the Buyer shall:

- stop using the vehicle immediately in order to avoid aggravating the damage;
- promptly notify Fleequid® of the event, in accordance with the procedure set out in Article 7 (*Reporting a failure and opening a Claim*);
- make the Vehicle available for any technical or diagnostic checks that Fleequid® deems necessary, at an Authorised Centre or other indicated centre.

6.5 It is expressly forbidden for the Buyer to carry out, or have carried out, repairs, disassembly, servicing or technical inspections on the Covered Components without the prior written consent of Fleequid®. Any work not authorised in advance shall result in automatic forfeiture of cover for the failure in question and the full financial burden shall be borne by the Buyer.

6.6 The Buyer is obliged to cooperate in good faith with Fleequid® throughout the handling of the Claim or failure, promptly providing any information, document or photograph that Fleequid® requires for the investigation. Refusal or failure to cooperate, including non-availability of the Vehicle for technical checks, shall result in the suspension or loss of the right to compensation.

6.7 The Buyer undertakes not to hinder or delay Fleequid®'s technical inspections, nor to solicit direct work on Excluded Components that may affect the diagnosis of Covered Components. In the event of non-cooperation or conduct aimed at circumventing or falsifying the Claims procedure (such as misrepresentation, alteration of documents or concealment of

evidence), the Buyer shall immediately forfeit any right to coverage and Fleequid® reserves the right to take action for further damages.

6.8 During the validity of the Service, the Buyer undertakes not to alter, tamper with or disable electronic diagnostic systems or on-board data recording devices (OBD, ECU, telematics systems, odometer). Any ascertained alterations, tampering or documental discrepancies shall lead to immediate forfeiture of the warranty. The Buyer shall promptly notify Fleequid® of any failure or replacement of the odometer, indicating the mileage shown at the time of the event. Any failure or replacement not attributable to the Buyer and promptly notified shall not lead to the forfeiture provided for in this paragraph, without prejudice to the Buyer's burden of proving the relevant mileage for the purposes of Article 4.2.

6.9 The cover of the *Fleequid Care® Service* shall remain suspended and inoperative for as long as the Buyer fails to comply with the payment conditions, technical requirements or obligations set out in this article. The suspension is deemed to be automatically lifted only upon full compliance with the previously unmet obligations, without retroactive effect.

6.10 It is understood that Fleequid®'s liability is limited to the provision of cover under the terms and within the limits set out in these *Specific Terms and Conditions*. In no event shall the conduct of the Buyer result in the extension of the limit of liability or in Fleequid® incurring further obligations.

7. REPORTING A FAILURE AND OPENING A CLAIM.

7.1 The Buyer shall notify Fleequid® of any Failure or malfunction of the Covered Components under the *Fleequid Care® Service*, under penalty of forfeiture, no later than five (5) working days after its occurrence or the date on which the Buyer became aware of it, using exclusively the official communication channels indicated in this article. This deadline concerns only the notification of the event to Fleequid®.

7.2 The report must be sent by e-mail to the dedicated address claims@fleequid.com, or through the dedicated section of the Fleequid® Marketplace portal, where available, by following the guided Claim procedure. Reports sent via other channels (e.g. telephone, messaging, ordinary post or to unauthorised e-mail addresses) shall not be considered valid for warranty purposes, even if Fleequid® had factual knowledge of such communication.

7.3 The report of the Failure must contain at least the following elements: identification details of the Buyer and the Vehicle (registration number, chassis/VIN, mileage, date of delivery), a summary description of the anomaly found indicating the date and circumstances of occurrence, photographic or video documentation where available and any other element useful for preliminary assessment, as well as, where possible, documentation attesting to the ordinary maintenance or the most recent repairs carried out. Together with the report, the Buyer shall provide documentary or photographic evidence of the mileage of the Vehicle at the time of occurrence of the Failure.

7.4 Upon receipt of the report, Fleequid® opens a Claim file and assigns a reference identification number to the event, which is communicated to the Buyer. Any requests for additional documentation suspend the time limit for the investigation until the missing information is received, without this affecting the duration of the Service.

7.5 If the report is received after the deadline specified in Article 7.1, or if the delay has led to an aggravation of the damage or made it impossible to ascertain the causes, Fleequid® may reject the claim, unless the Buyer proves that the delay is not attributable to them.

7.6 Submission of a report does not in itself constitute recognition of entitlement to cover. The confirmation of the operability of the Service and the subsequent handling of the Failure shall follow the procedure set out in Article 8 below.

8. FAILURE MANAGEMENT AND REPAIRS.

8.1 Upon receipt of the report in accordance with Article 7, Fleequid® shall open a Claim file and notify the Buyer of its initiation, providing the case reference number and details of the Authorised Centre to which the Vehicle must be delivered for diagnosis and repair, if any. The indication of the Authorised Centre is binding for the purposes of the validity of the cover, unless otherwise authorised in writing by Fleequid®.

8.2 The Buyer shall deliver the Vehicle to the Authorised Centre within five (5) working days of Fleequid®'s notification, unless there are proven organisational or logistical impediments, which must be notified in good time. This time limit is independent from the time limit provided for in Article 7 for reporting the Failure. In the event of unjustified delay or non-delivery, Fleequid® reserves the right to suspend the investigation, and if the unavailability continues beyond a further thirty (30) days, to declare the forfeiture of cover for the reported event.

8.3 Upon receipt of the vehicle, the Authorised Centre carries out a technical diagnosis and sends Fleequid® a detailed repair estimate, specifying the parts affected, the presumed cause of the Failure, the estimated costs of materials and labour, and the possible involvement of Excluded Components. Fleequid® shall evaluate the estimate within ten (10) working days of receipt and notify the Buyer in writing of its decision, indicating the amounts and transactions covered under the warranty. The Buyer shall, within ten (10) working days of the notification, confirm in writing acceptance of the estimate, limited to the portion of the cost to be borne by the Buyer; the absence of a response within the aforementioned period, or delay in responding shall be understood as tacit acceptance and the repairs may be carried out within the limits approved by Fleequid®.

8.4 The authorisation of Fleequid® determines its direct economic commitment within the limits set out in Article 5. Cover is deemed to apply only to the amounts and transactions expressly approved. Any change to the initial estimate must be subject to new written approval by Fleequid®.

8.5 The payment of the portion covered by Fleequid® (corresponding to the portion paid by Fleequid®, net of the value of the Voucher and within the limit of liability) is made directly to

the Authorised Centre, which will issue an invoice in the name of Fleequid - Adorea S.r.l. for the relevant portion. The residual portion not covered by Fleequid®, determined as the difference between the total cost of the work and the cash amount recognised by Fleequid® within the limit of liability and the value of the Voucher established by Fleequid® pursuant to Article 5, shall be borne by the Buyer, who shall pay it directly to the Authorised Centre in accordance with the terms indicated by the latter or in any case communicated by Fleequid®. If, for operational or accounting reasons, Fleequid® also advances to the Authorised Centre sums payable by the Buyer, including sums to the value of the Voucher, the Buyer shall immediately reimburse Fleequid® for the amounts advanced. The Fleequid® Voucher referred to in Article 5 is a separate contractual benefit, which can only be used to offset the Commissions due to Fleequid® on future purchases or sales of Vehicles, and does not constitute a means of payment to the Authorised Centre. If the total cost of the work exceeds the available limit of liability, the difference shall be borne in full by the Buyer.

8.6 If, for technical or logistical reasons, Fleequid® authorises the Buyer to have the repair carried out at a different workshop, reimbursement shall be made retrospectively, within thirty (30) working days of presentation of the original documentation (invoice, technical report, proof of payment), subject to verification of compliance with these Specific Terms and Conditions.

8.7 All spare parts used must be original or equivalent; Fleequid® reserves the right to supply the necessary parts directly or to indicate approved suppliers. Technical improvements, upgrades or modifications of the vehicle that are not strictly necessary for the repair of the Covered Components are excluded.

8.8 Replaced components remain the property of Fleequid®, which may freely dispose of them for purposes of technical inspection, reconditioning or disposal. The Authorised Centre, or the Buyer in the case of repairs expressly authorised by Fleequid®, undertakes to keep them for at least thirty (30) days from the closure of the file, unless otherwise instructed.

8.9 The performance of the work by the Authorised Centre constitutes fulfilment of Fleequid®'s obligation; no further claims may be made by the Buyer for vehicle downtime, loss of turnover, transport costs, overnight accommodation or other incidental expenses, these items being expressly excluded from the cover. The Buyer acknowledges and accepts that Fleequid® assumes no responsibility for the correct technical execution of work carried out by the Authorised Centres, which operate in full professional and organisational autonomy. Any dispute regarding the quality or suitability of repairs, the spare parts used or the time taken to complete the work shall be handled directly between the Buyer and the Authorised Centre. The Buyer shall indemnify and hold Fleequid® harmless against any claim or demand for compensation connected with or resulting from the actions of the Authorised Centre, except in the case of wilful misconduct or gross negligence attributable to Fleequid®.

8.10 Upon completion of the work, the Authorised Centre shall issue to the Buyer and Fleequid® the case closure form, showing the work carried out and the parts replaced. The case shall be deemed to be definitively closed upon written confirmation by Fleequid® that the

contractual benefit has been disbursed and, if applicable, that the relative Voucher has been issued.

9. EXCLUSIONS.

9.1 The *Fleequid Care® Service* operates exclusively within the limits of the provisions of Articles 2, 3 and 5 and does not, under any circumstances, cover events, components or circumstances other than or in addition to those expressly indicated as covered. Anything not explicitly included in these *Specific Terms and Conditions* shall be deemed excluded from the cover.

9.2 Failures or Malfunctions resulting, even indirectly, from one or more of the following causes are specifically excluded from cover:

- a) Failures already evident at the time of delivery of the Vehicle, as well as defects, faults or anomalies already detected, reported, highlighted or declared in the *TrustReport* or otherwise known to the Buyer or Seller at the time of delivery;
- b) Ordinary wear and tear of components, natural consumption of materials or parts subject to normal deterioration due to time, mileage or use;
- c) Deficiencies in maintenance, maintenance not carried out in accordance with the manufacturer's instructions or failure to carry out the required periodic inspections;
- d) Improper use of the vehicle, overloading, negligent driving or use other than for normal professional purposes;
- e) Unauthorised work or modifications, tampering, mechanical or electronic alterations, tuning or installation of non-original or non-compliant components;
- f) Work not previously authorised by Fleequid®, including dismantling, repair or diagnosis carried out before written authorisation by Fleequid®;
- g) Fortuitous events or force majeure, including natural or external events occurring after delivery of the Vehicle (accidents, fire, flooding, hail, frost, electrical surges, vandalism or malicious acts);
- h) Defects or failures resulting from manufacturer's design or construction errors, recalled or covered by statutory warranties or official recall campaigns;
- i) Electrical, electronic or computer failures not directly related to engine or gearbox components, as well as failures related to components not covered under Art. 3.4 (Excluded Components), such as, but not limited to, electrical or hydraulic components other than those specified, materials subject to normal wear and tear, traction or starter batteries, tyres, brakes, suspension, steering, bodywork, windows, headlamps and lights interior trim, accessories, exhaust system elements, emission treatment systems or particulate control devices, air conditioning (A/C) system in all its components, and any other organ, part or system not expressly included in the Covered Components;

- j) Failure to comply with the failure reporting and management procedures set out in Articles 7 and 8, or refusal of the Buyer to cooperate with the technical checks requested by Fleequid®;
- k) Fraudulent conduct, misrepresentation or falsification of documents by the Buyer or persons appointed by the Buyer;
- l) Participation of the Vehicle in competitions, track tests, demonstration or experimental uses not previously authorised in writing by Fleequid®.

9.3 Cover does not extend to parts or systems that do not belong to the Covered Components (Art. 3.3), nor to damage resulting from malfunctions of such components involving other parts of the Vehicle. In such cases, Fleequid® shall only be liable for the repair or replacement of the covered component directly affected by the original Failure, within the limit of liability set out in Article 5.

9.4 Any coverage for damage occurring after the termination of coverage pursuant to Art. 4.2, even if it relates to Failures or defects that arose at an earlier time but had not yet become apparent at the time of termination of the warranty, is expressly excluded, without prejudice to the provisions of the same Art. 4.2 regarding a Failure that became apparent within the limits indicated therein and was reported subsequently.

9.5 In any event, cover does not extend to costs relating to diagnostic activities, surveys, dismantling or inspections not previously authorised by Fleequid®, unless these are expressly requested or ordered by Fleequid® as part of the handling of the Claim.

10. GEOGRAPHICAL SCOPE.

10.1 The *Fleequid Care® Service* is valid and effective for Vehicles used, driven and repaired within any country, unless otherwise expressly communicated by Fleequid® in the pre-contractual or contractual documentation activating the Service. The warranty shall only apply with respect to Failures occurring in territories in which there are no restrictions communicated by Fleequid®.

10.2 Work covered by the Service must be performed at Authorised Centres identified or approved in advance by Fleequid®. Any work carried out outside the network of Authorised Centres shall result in forfeiture of the right to cover, unless prior and specific written authorisation is given by Fleequid®, even if the work is carried out in countries for which the Service is in principle valid.

10.3 If the Vehicle is transferred, driven or used in countries for which Fleequid® has communicated specific restrictions, coverage shall remain suspended for the entire duration of the Vehicle's stay in these countries and shall automatically resume when the Vehicle returns to a territory that is not subject to restrictions.

10.4 Fleequid® shall not be liable for delays or organisational difficulties in carrying out repairs due to the unavailability of Authorised Centres at the location of the Vehicle, nor for the costs of

towing, transporting or repatriating the Vehicle from the location of the Failure to the nearest Authorised Centre, unless such services are expressly authorised in writing by Fleequid®.

10.5 It is understood that the territorial validity of the Fleequid Care® Service does not change or extend the duration of the Service, nor does it entail any obligation on the part of Fleequid® to provide ongoing international assistance, remaining solely obliged to provide the services set out in these Specific Terms and Conditions.

11. LIMITATIONS OF LIABILITY.

11.1 The liability of Fleequid® in connection with the *Fleequid Care® Service* is strictly limited to the services and amounts set out in these *Specific Terms and Conditions*. In no event shall Fleequid®'s total financial exposure exceed the limits set forth in article 5, nor exceed the commercial value of the Vehicle at the time of the Failure.

11.2 The Buyer acknowledges that the *Fleequid Care® Service* is an optional, non-insurance, commercial warranty covering only pre-existing Failures not declared in the TrustReport, and that therefore there is no obligation on Fleequid® to indemnify the Buyer for events other than those expressly stated in these Terms and Conditions. Any extensive or analogical interpretation of the coverage is excluded.

11.3 In any case, Fleequid® shall not be liable for:

- indirect or consequential damages, including, but not limited to, loss of turnover, loss of profit, loss of image or clientele, contractual penalties, non-availability of the Vehicle or temporary replacement costs;
- the costs of towing, garaging, transport or travel of personnel, unless expressly authorised in writing by Fleequid®;
- damage to property or bodily injury caused to third parties as a consequence of the Failure or immobilisation of the Vehicle;
- any other damage or injury that cannot be directly, immediately and documented as a result of the repair or replacement of a component covered under these Specific Terms and Conditions.

11.4 Fleequid®'s liability shall be excluded if the Buyer has not fulfilled their obligations under Articles 6, 7 and 8 or has carried out, has had carried out or has permitted work to be carried out that was not authorised in advance. Liability is likewise excluded in all cases of fraud, falsification of documents, misrepresentation, alteration of mileage or use of the vehicle other than for its normal or professional purpose.

11.5 Fleequid® shall not be liable for delays, omissions or impossibility of performance due to force majeure, unavailability of components or spare parts, interruptions in the supply chain, strikes, suspensions of service, measures taken by the authorities or other events beyond its control, without prejudice to the Buyer's rights under Article 13 of these Terms and Conditions.

11.6 The warranty and obligations of Fleequid® shall be deemed to have been fully performed by:

- the authorisation and payment of repairs at the Authorised Centre, within the limits of liability; and/or
- issuing and making available the Fleequid® Voucher, for the part of the indemnity paid in that form.

The issue of the Voucher shall constitute full and final satisfaction of Fleequid®'s obligation for the corresponding portion of the indemnity.

11.7 It is understood that the *Fleequid Care® Service* neither limits, nor prejudices, nor replaces any rights of the Buyer against the Seller arising from the *General Terms and Conditions* or from the legislation on defects of the goods sold. Activation of the Service does not imply any waiver or settlement of these rights, but operates as an independent and voluntary protection vis-à-vis Fleequid®, only to the extent provided for herein.

12. CLAIMS AND DISPUTE RESOLUTION.

12.1 Any Claims, reports or disputes relating to the performance of the *Fleequid Care® Service* must be submitted by the Buyer exclusively in writing by e-mail to claims@fleequid.com.

Communications sent through different channels are not considered valid for the purposes of the Claims handling procedure.

12.2 The Claim must include the file identification number, a description of the facts in dispute and any document useful for the evaluation of the claim. Fleequid® shall examine the Claim within thirty (30) days of its receipt and shall inform the Buyer of the outcome, indicating any measures taken or reasons for rejection.

12.3 If the Buyer is not satisfied with Fleequid®'s response, it may initiate a mediation procedure pursuant to *Leg. Decree No 28 of 4 March 2010* before the Mediation Body of the Chamber of Commerce, Industry, Crafts and Agriculture of Como-Lecco, which the Parties hereby declare to accept as competent. Participation in mediation is a condition for proceeding with any subsequent court or arbitration action.

12.4 If the mediation procedure is not concluded with an amicable agreement within ninety (90) days from its commencement, or if one of the Parties does not participate, any dispute arising out of the interpretation, execution, validity or termination of these Specific Terms and Conditions and, more generally, of the *Fleequid Care® Service*, shall be settled by arbitration, according to law, by a single arbitrator, appointed in accordance with the Rules of the Chamber of Arbitration of Milan, which the Parties hereby declare to accept in full.

12.5 The seat of the arbitration is Milan, the language of the proceedings is Italian and the applicable law is Italian law. The arbitration award shall be final and binding on the Parties, with express waiver of any appeal other than those provided for in Article 829(3) of the Italian Code of Civil Procedure.

12.6 This is without prejudice to each Party's right to apply, on an urgent basis, to the ordinary judicial authority for the adoption of interim or protective measures, even prior to or during the arbitration proceedings, pursuant to Article 669-quinquies of the Italian Code of Civil Procedure.

For any dispute not subject to arbitration or relating to the execution of arbitration measures, the Court of Como shall have exclusive jurisdiction.

13. FORCE MAJEURE.

13.1 Neither party to the contract shall be liable for non-performance or delayed performance of its obligations if such non-performance results from force majeure, meaning all unforeseeable, unavoidable events beyond the control of the obligated party that objectively and temporarily prevent the performance of the due services. This exemption also applies to services entrusted to Authorised Centres if the performance of the services is prevented or seriously impeded by events of force majeure that directly affect these Centres, without this being attributable to Fleequid®.

13.2 Events of force majeure include, but are not limited to, wars, uprisings, terrorist acts, popular uprisings, natural disasters, fires, floods, earthquakes, epidemics or pandemics, general or trade strikes, transport blockades, measures or orders of public authorities, prolonged interruptions of essential public services, general unavailability of materials or components, extended computer network failures, computer or cyber-attacks, power blackouts or any other cause of equal severity, including events that render the Authorised Centre in charge of the work unavailable or non-operational.

13.3 A Party that is prevented from performance due to force majeure must immediately notify the other Party in writing, indicating the nature of the event, its probable duration and the consequences for the performance of the contractual obligations. Performance is suspended for the duration of the force majeure and resumes automatically as soon as conditions permit.

13.4 If the suspension due to force majeure lasts for a period of more than thirty (30) consecutive days, each Party shall be entitled to terminate the agreement by written notice to the other Party, without this giving rise to any right to indemnity or compensation, without prejudice to the obligation to perform any services already accrued at the date of termination.

13.5 It is understood that the existence of a force majeure does not exempt the Buyer from the obligation to pay the price of the Fleequid Care® Service, nor does it suspend the period of validity of the Service as stipulated in Article 4. Similarly, any delays in repair due to force majeure affecting the Authorised Centre shall not result in an extension of the duration of the Service or in liability for Fleequid®.

14. UNILATERAL CHANGES.

14.1 Fleequid® reserves the right to amend these *Specific Terms and Conditions of the Fleequid Care® Service* at any time, if this is necessary to adapt them to new technical, organisational, regulatory or security requirements, or to ensure a better functioning of the Service or greater protection of the Marketplace Users. The changes shall be communicated to the Buyer by publication of the new version of the *Specific Terms and Conditions* on the official

website www.fleequid.com and shall take effect from the time of publication, unless a different effective date is expressly indicated by Fleequid®.

14.2 The changes shall not affect the Services already activated and in force, which shall continue to be governed by the version of the Specific Terms and Conditions in force at the time of activation, unless the changes are imposed by legal provisions or measures of the competent authorities, in which case they shall take immediate effect.

14.3 For all matters not expressly provided for in this article, Article 3 of the General Terms and Conditions of the Fleequid® Marketplace concerning unilateral changes to the contractual terms and conditions shall apply, which is hereby deemed to be fully referred to and transcribed.

15. COMMUNICATION.

15.1 Unless otherwise provided for in these *Specific Terms and Conditions of Fleequid Care® Service* — and in particular subject to the provisions of Articles 7 (Reporting a Failure and opening a Claim) and 12 (Claims) — all communications between Fleequid® and the Buyer must be made in writing and sent by registered post with signed-for delivery, express courier service or e-mail using the following official contacts of Fleequid®:

ADOREA S.R.L.
Via Provinciale per Bizzarone, 43
22077 Olgiate Comasco (CO),
Tax Code and VAT No 04114790134
Tel. +390287176063
e-mail info@fleequid.com

15.2 Notifications are considered valid and binding upon delivery if sent by registered mail with signed-for delivery, upon hand-over to the courier if sent via express courier service, or upon confirmation of delivery if sent by e-mail to Fleequid.

15.3 Fleequid® shall send all notifications to the addresses, including ordinary e-mail addresses, indicated by the Buyer during registration on the *Fleequid® Marketplace* or subsequently updated, and such notifications shall be presumed delivered to and read by the recipient after they are sent by Fleequid®. It is the Buyer's responsibility to keep their addresses up to date; any change to the contact addresses must be notified in writing in order to be considered valid.

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In accordance with and for the purposes of Articles 1341 and 1342 of the Italian Civil Code, the Buyer expressly declares that they have read and understood and that they agree to the following clauses of the Specific Terms and Conditions of the Fleequid Care® Service: Art. 2 (Subject and Nature of the Service) - Nature of optional commercial and non-insurance warranty; exclusion of further indemnity obligations; exclusion of extensive interpretations; prevalence of the Specific Terms and Conditions; Art. 3 (Covered and Excluded Components) - Exclusivity of covered components; extensive list of excluded components; exclusion of parts or systems not indicated; forfeiture for unauthorised intervention; Art. 4 (Commencement, Duration, Conditions of Effectiveness and Consideration) - No reimbursement or extension in the event of non-use; suspension or early termination; automatic forfeiture in the event of transfer of the Vehicle; Art. 5 (Limits of Liability and Methods of Indemnity) - Discretionary determination of indemnity; partial payment through a non-convertible Voucher; waiver of objections; right of retention of the Authorised Centre and indemnity; Art. 6 (Obligations of the Buyer) - Forfeiture in the event of failure to comply with obligations; prohibition of unauthorised work; suspension of cover in the event of default; immediate forfeiture for tampering with electronic systems; Art. 7 (Reporting a Failure and Opening a Claim) - Mandatory deadlines and formal obligations; forfeiture for delays or failure to comply with the procedure; Art. 8 (Failure Management and Repairs) - Fleequid®'s discretionary power in choosing the Authorised Centre and the work methods; exclusion of reimbursement for unauthorised repairs or diagnoses; Art. 9 (Exclusions) - Exclusion of coverage for numerous causes and components: wear and tear, inadequate maintenance, improper use, tampering, force majeure, manufacturer's defects, fraudulent conduct, failure of non-covered components; Art. 10 (Geographical Scope) - Geographical limitation of performance; suspension of coverage in the event of use of the Vehicle outside the envisaged scope; Art. 11 (Limitations of Liability) - Exclusion and limits of liability for indirect damages, consequential damages, damages to third parties, unavailability of the Vehicle and force majeure; exoneration of liability in the event of default by the Buyer; obligations considered fulfilled with authorised repairs and/or Vouchers; Art. 12 (Complaints and Dispute Resolution) - Obligation of mediation; binding arbitration at the Chamber of Arbitration of Milan; waiver of appeals; exclusive jurisdiction of Como for residual disputes; Art. 13 (Force Majeure) - Exclusion of liability for force majeure events; right of suspension and termination without further compensation; Art. 14 (Unilateral Changes) - Fleequid®'s right to unilaterally modify the Specific Terms and Conditions with immediate effect as provided for; Art. 15 (Communication) - Presumption of validity and receipt of communications sent to the addresses indicated; limitation of the possibility of disputing knowledge.